

## **Oldarpoi Mara Camp (hereinafter called OMC) Terms & Conditions**

(All General Terms & Conditions of OMC Apply)

### **1. Jurisdiction**

This Agreement and its interpretation shall be subject to the laws of Kenya.

### **2. Government Taxes**

All rates quoted include VAT, Service Charge & Hotel Training Levy where applicable. Should the Government increase, decrease or introduce new taxes, OMC reserves the right to renegotiate the rates of this Agreement accordingly.

### **3. Exchange Rates**

Should the exchange rate of the currency of this contract (USD) and Kenya Shilling change considerably, OMC reserves the right to renegotiate the rates, an addition of 10% of this Agreement accordingly.

### **4. Group Bookings**

4.1 Group bookings, scheduled tour series/incentive groups, block bookings, are to be re-confirmed (in writing) by the Agent not less than 15 days prior to the arrival date at OMC and the written reconfirmation notice should be accompanied by

- (i) A confirmation voucher (physical amendments by drivers etc will not be acceptable),
- (ii) Rooming list. Failure to do so will render a booking void and OMC will have the right to release rooms without notice to the Agent after such period (i.e. 15 days prior to date of booking rooms will be released).

4.2 Should OMC receive a second enquiry where another group is prepared to make a firm commitment for the space prior to the Agent's acceptance/Confirmation Voucher, OMC reserves the right to contact the Agent for a signed confirmation voucher within 2 days & or demand a minimum of 50% deposit in order to secure the agents booking. In the event the deposit is demanded, this must be paid within 5 working days of such demand being made in writing.

4.3 For groups of 20 pax plus a non-refundable deposit of 50% must be paid to OMC prior to confirmation & at least 35 days prior to arrival date at OMC in order to secure the rooms.

If, for any reason, and unless otherwise confirmed in writing by OMC, accommodation is not secured by the means outlined above; OMC will have the right to sell/release these rooms with immediate effect.

### **5. Cancellations and No-Shows**

Reservations that are cancelled, reduced in length or stay or reduced in numbers (herein after collectively called Cancellation) are subject to the following cancellation and No-show Fees (cancellations must be confirmed in writing to OMC Central Reservations Office in Nairobi and as maybe advised from time to time by OMC):

5.1 Cancellation GREATER than 45 Days: No cancellation charges will be incurred

5.2 Cancellation between 44 to 39 days: 20% of the contract rate

5.3 Cancellation between 38 to 8 days: 50% of the contract rate.

5.4 Cancellation between 1 to 7 days prior to arrival, no show and under stay: 100% of the contract rate.

Please note: For groups that have paid a non-refundable deposit, the cancellation charges above will apply to the remaining balance only.

5.5 All no shows will result in a cancellation of all complimentary granted, and no credit note shall be issued

## 6. Early Departure Fees

Should an individual or group depart earlier than the confirmed departure date, a fee of 100% of the group/individual/contract rate will apply for each night thereafter of the confirmed booking.

## 7. Payment

7.1 Payment Terms - Full payment is required at least 7 days prior to arrival at OMC by either cash or cheque (please note that cheques should be remitted at least 5 working days prior to arrival date. Should a cheque be returned by the bank for any reason, OMC will require cash or a banker's cheque plus a returned cheque fee of 5% within 72 hours.

7.2 Default - Any default on payment to OMC may result in the clients being refused admittance to OMC until payment is received. Consistent default will be cause for termination of this agreement.

7.3 Collection fees - All related costs incurred by OMC in the collection of unpaid invoices and/or returned cheques will have to be refunded to OMC immediately. Failure to replace returned cheques may constitute a default of this agreement.

7.4 Payment location - All payments for accommodation must be received by email: [maracampolarpoi@gmail.com](mailto:maracampolarpoi@gmail.com) or [info@oldarpoimaracamp.co.ke](mailto:info@oldarpoimaracamp.co.ke)

7.5 BANK DETAILS:

**OLDARPOI WAGENI CAMP LIMITED**  
**BANK: DIAMOND TRUST BANK KENYA**  
**BRANCH: NAROK BRANCH**  
**BANK CODE: CODE 063**  
**BRANCH CODE :061**  
**SWIFT CODE: DT KEKENA**  
**USD AC NO : 0554951002**  
**KES AC NO : 0554951001**

**MPESA DETAILS**  
**Till No. 143809**

## 8. Check-in/Check-out

Rooms are available for new arrivals from 12:00 pm on the scheduled date of arrival. Rooms should be vacated by 10:00 am on the scheduled date of departure; late departure times may be considered subject to anticipated arrivals. (Please note: All guests must settle their accounts for extras in full by either cash [Kenyan shillings or US Dollars] or credit card [Visa or MasterCard only] or Via MPESA Till [Buy Goods] on check-out.)

OMC does not accept liability for any omissions or errors and reserves the right at any time to change information published on its marketing collateral (e.g. website, brochures, online platforms etc.).

Guest Property/Conduct - All guests' property etc. is the sole responsibility of the guest, unless placed in the hotel Reception. Guest's vehicles including contents are left on the hotel site at the vehicle owner's sole responsibility. Anti-social behavior will not be tolerated and persons involved will be asked to leave. If there is anything that a guest is dissatisfied with relating to service or product at OMC, it is advised that the guest/s inform the **General Manager** immediately so that the matter is dealt with/resolved accordingly.

Members of staff are unable to authorize credit or refunds.

Damages - Any damages to the hotel property by your guests will be charged for in full, for the cost of cleaning, repair and/or replacing, along with any lost revenue of rooms awaiting attention. This will be the liability of the Agent, who will be responsible for collecting payment, if necessary, from their guest/s.

**Valuables**- Any valuables left at the property are the guest's sole responsibility. Neither the lodge nor the staff can be held responsible for any loss or damage of personal property.

**Please note: Children are at all times to be supervised by their parents.**

## 9. Complimentary

### 9.1 Complimentary & Familiarization Trips

Complimentary will be considered and or accommodated in the low season only, subject to the discretion of Management (complimentary will not be permitted on public holidays, should be requested in writing officially by manager/director of tour firm).

### 9.2 Complimentary authorization

All complimentary shall be authorized by the directors at head office alone, and one shall have to send the request directly to them in writing i.e. over email of voucher copy.

## 10. Force Majeure Suspension Clause

The obligations of OMC under this agreement shall be suspended while they are prevented or hindered by force majeure, including but not limited to strike, lock downs, labour and civil disturbances, acts of God, unavoidable accidents, threats of war, pandemics, terrorism, industrial dispute, natural or nuclear disaster, laws, rules, regulations or orders of any Government or any National Municipal or other Government Agency, whether domestic or foreign, wars or other matters beyond the reasonable control of OMC.

## 11. CHILD POLICY

Children sharing room with adults

**0 – 3 YEARS – FREE**

**4- 12 YEARS – SHARING WITH ADULT (50% OF ADULT PER PERSON SHARING RATE)**

**4 – 12 YEARS – IN OWN TENT (75% OF ADULT PER PERSON SHARING RATE)**

**12 YEARS & ABOVE – FULL ADULT RATE**

## 12. Generally

A duplicate of these Terms and Conditions is enclosed/attached. Would you please sign one copy by way of acceptance and then send back to us.



Oldarpoi Mara Camp  
Adlife Plaza, 2<sup>nd</sup> Floor, Kilimani  
Email: [info@oldarpoimaracamp.co.ke](mailto:info@oldarpoimaracamp.co.ke)  
Web: [www.oldarpoimaracamp.co.ke](http://www.oldarpoimaracamp.co.ke)

We would be delighted to share our world with you. Your satisfaction is our priority.

Warmest regards,

*Cynthia*

Company Name: \_\_\_\_\_

RESERVATIONS MANAGER

OLDARPOI MARA CAMPS

Designation-----

Tel: +254 725 278 942

Stamp:

Email: [info@maracampoldarpoi.co.ke](mailto:info@maracampoldarpoi.co.ke)

**Date:**

Web: <http://oldarpoimaracamp.co.ke/>